

26SMCV02765 26SMCV02765

County: los-angeles
Division: Civil Law and Motion
Department: 207
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TENTATIVE
RULING

DEPARTMENT

207

HEARING DATE

September
9, 2026

CASE NUMBER

26SMCV02765

MOTION

Preserve
Evidence

MOVING PARTY

Plaintiff
Alanna Zabel

OPPOSING PARTY

none

MOTION

This case arises from allegations that Plaintiff was injured when she was unknowingly served a cup of scalding hot water.

On May 20, 2026, Plaintiff Alanna Zabel ("Plaintiff") filed suit against Defendant Co-opportunity Market "Co-opportunity Consumers Cooperative, Inc." ("Defendant") alleging four causes of action for (1) negligence; (2) premises liability; (3) negligent hiring, training, supervision, and retention; and (4) negligent infliction of emotional distress.

Plaintiff personally served Defendant with a copy of the summons and complaint on June 5, 2026, and default was entered against Defendant on July 16, 2026.

Plaintiff now moves for an order requiring Defendant to preserve all surveillance recordings relating to the incident alleged in the Complaint. The motion is unopposed.

ANALYSIS

Plaintiff brings the motion pursuant to Code of Civil Procedure section 526, subdivisions (a)(2) and (a)(3) and Section 128, subdivision (a)(8).

Code of Civil Procedure section 526, subdivision (a)(2)-(3) provide that an injunction may be granted when it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste or great irreparable injury or where it appears during litigation that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party.

Code of Civil Procedure section 128, subdivision (a)(8) provides that the Court has the inherent power to control its process and orders so as to make them conform to law and justice.

Plaintiff

effectively seeks injunctive relief, which is not requested in the Complaint, against a defendant in default. As such, the Court finds Plaintiff's request to be procedurally improper, as Defendant was not reasonably on notice of the request for injunctive relief when Defendant was served with the summons and complaint, and Plaintiff has not subsequently provided Defendant with notice of the injunctive relief request under California Rules of Court, rule 3.1150.

Further, "The purpose of a preliminary injunction is to preserve the status quo pending final resolution upon a trial." (Grothe v. Cortlandt Corp. (1992) 11 Cal.App.4th 1313, 1316.) The status quo has been defined to mean the last actual peaceable, uncontested status which preceded the pending controversy. (14859 Moorpark Homeowner's Assn. v. VRT Corp. (1998) 63 Cal.App.4th 1396, 1402.) Preliminary injunctive relief requires the use of competent evidence to create a sufficient factual showing on the grounds for relief. (See, e.g., ReadyLink Healthcare v. Cotton (2005) 126 Cal.App.4th 1006, 1016; Ancora-Citronelle Corp. v. Green (1974) 41 Cal.App.3d 146, 150.)

In order to obtain an injunction, Plaintiff must demonstrate (1) the likelihood the plaintiff will prevail on the merits of its case at trial, and (2) the interim harm the plaintiff is likely to sustain if the injunction is denied as compared to the harm the defendant is likely to suffer if the court grants a preliminary injunction. (Code Civ. Proc., § 526, subd. (a); Husain v. McDonald's Corp. (2012) 205 Cal.App.4th 860, 866-867 (hereafter Husain).) The balancing of harm between the parties "involves consideration of such things as the inadequacy of other remedies, the degree of irreparable harm, and the necessity of preserving the status quo." (Husain, supra, 205 Cal.App.4th at p. 867.)

Here, the only basis for Plaintiff's motion is, despite being assured by Defendant's insurer that Defendant has been notified to preserve all surveillance footage and advised that materials could be obtained through legal process, the recordings have not yet been provided to Plaintiff. Under the circumstances, the Court finds that Plaintiff has not demonstrated any likelihood of harm.

To the contrary, Plaintiff

has not demonstrated that she ever propounded any such discovery requests on Defendant. Further, the reassurance from Defendant's insurer confirms that Defendant has been advised to preserve the surveillance footage and it may be obtained through legal process. Thus, Plaintiff's rights are adequately protected, and Plaintiff has remedies under the law.

CONCLUSION AND ORDER

For the reasons stated, the Court denies Plaintiff's motion without prejudice.

The Court notes that the only named Defendant has defaulted, and as such, notice of the Court's ruling may be unnecessary (see Sporn v. Home Depot USA, Inc. (2005) 126 Cal.App.4th 1294, 1301 [after default has been entered, the defaulted defendant is no longer an active party in the litigation and thus is not entitled to further notices].)

Notwithstanding, to the extent necessary, Plaintiff shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: September 9, 2026 _____/s/ _____

Michael
E. Whitaker

Judge
of the Superior Court